



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

May 21, 2024

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202208252 (Incident Date: December 1, 2022) regarding Police Officer Christopher Ghee, Tax No. 944591 (DADS No. 2024-30048)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in connection with CCRB Case No. 202208252, pertaining to Police Officer Christopher Ghee, and has determined that disciplinary action is not warranted in connection with the substantiated allegations.

In this case, Police Officer Ghee responded to a 911 call in December of 2022 regarding a landlord/tenant dispute. Upon arriving, Police Office Ghee learned that the first floor tenant was complaining that she had no electricity and that the landlord was improperly handling the electric box. The landlord, who resided on the second floor, explained that the boiler was not functioning because the tenant caused a flood in the basement where the boiler is located and that both apartments had no heat. As a result, space heaters were required to heat the rooms in the house. When the officers arrived, some of the rooms in the tenant's apartment did not have electricity.

After speaking to both parties, the officers proceeded with the landlord to the garage where the circuit breaker was located. To the left of the garage was a doorway leading to a room that contained the boiler and hot water heater. Police Officer Ghee went through the doorway and proceeded to the boiler where he spent a few moments inspecting. Since the landlord claimed the flooded boiler was the reason for no heat, Police Officer Ghee explained that he specifically went to the area to look at the boiler that the landlord claimed was broken and resulted in the lack of heat in the building. Once the landlord protested his presence in that area, Police Officer Ghee left the

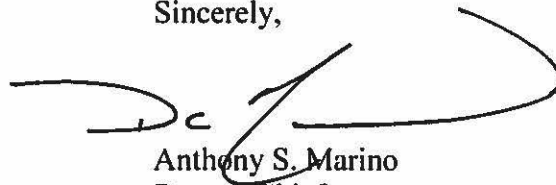
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location. Police Officer Ghee's intention was not to conduct a search for the purposes of seizing evidence or persons, rather, he attempted to verify that which was told to him by the landlord as being the cause of the electricity dispute, and possibly offer advice or assistance on how to proceed.

Therefore, the Police Commissioner directs that no disciplinary action be imposed against Police Officer Ghee for the allegations of an unlawful entry and search.

Sincerely,

A handwritten signature in black ink, appearing to read 'Anthony S. Marino', with a large, sweeping flourish extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office